

Defendant also seeks sanctions under CCP § 128.5. This request is improper. A motion for sanctions under CCP § 128.5 must be brought as a separate motion, which has not occurred. (CCP § 128.5(f)(1)(A).) Additionally, there is a 21-day safe harbor period that must be complied with, which also has not occurred. (Id. at (f)(1)(B).)

4.

CASE #	CASE NAME	HEARING NAME
CVRI2503929	TAYLOR VS KIA CORPORATION	DEMURRER ON 1ST AMENDED COMPLAINT

Tentative Ruling: Sustain demurrer, 30 days leave to amend.

CCP §430.41 and §435.5 requires a meet and confer process via **phone or in person** before filing a demurrer or motion to strike. The meet and confer process requires the moving party to identify the causes of action or allegations subject to attack and the plaintiff must provide legal support for its position. (CCP §430.41(a)(1), 435.5(a)(1).) The demurring party must file a declaration stating the means by which the parties met and conferred, or the responding party failed to respond or meet and confer in good faith. (CCP §430.41(a)(3).)

The motion is accompanied by the declaration of Attorney David Ter-Petrosyan who spoke with Plaintiff via telephone on April 27, 2026. He then exchanged emails with Plaintiff regarding her willingness to potentially amend the pleadings. This satisfies the meet and confer requirement.

I. Standard on Demurrer

A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (CCP § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts which have been properly pleaded, of facts which may be inferred from those expressly pleaded, and of any material facts of which judicial notice has been requested and may be taken. (*Crowley v. Katleman* (1994) 8 Cal.4th 666, 672.) However, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) Where the dates alleged in the complaint show the cause of action is barred by the statute of limitations, a general demurrer lies. (*Saliter v. Pierce Bros. Mortuaries* (1978) 81 Cal.App.3d 292, 300.)

II. Special Demurrer – Uncertainty

Defendant argues the FAC is uncertain because it references two separate and distinct entities – Kia Corporation and Kia America, Inc. The meet and confer

declaration demonstrates Plaintiff was willing to amend the FAC to correct this issue. (Ter-Petrosyan Decl. ¶¶ 5, 9.) Plaintiff's Opposition indicates she still remains willing to address this issue via amendment. This issue is easily resolved via amendment.

Sustain with leave to amend.

III. General Demurrer – Sufficiency of Allegations

Plaintiff alleges a strict products liability claim. "The elements of a strict products liability cause of action are a defect in the manufacture or design of the product or a failure to warn, causation, and injury. More specifically, plaintiff must ordinarily show: (1) the product is placed on the market; (2) there is knowledge that it will be used without inspection for defect; (3) the product proves to be defective; and (4) the defect causes injury." (*Nelson v. Superior Court (Exxon Mobil Corporation)* (2006) 144 Cal.App.4th 689, 695.) "In products liability cases, a consumer injured by a defective product may sue any business entity in the chain of production and marketing, from the original manufacturer down through the distributor and wholesaler to the retailer; liability of all such defendants is joint and several." (*Kaminski v. Western MacArthur Co.* (1985) 175 Cal. App. 3d 445, 455-456.) The doctrine of strict liability applies to the production and distribution of products in the stream of commerce, but does not apply to transactions whose primary objective is to provide services. (*Pierson v. Sharp Memorial Hospital* (1989) 216 Cal. App. 3d 340, 344.)

The FAC does not allege which products liability theory Plaintiff is pursuing – design defect, manufacturing defect, or failure to warn. The FAC does not allege the car was defective due to a design, manufacturing, or failure to warn defect. Plaintiff alleges the fire originated from the "front engine area" and was caused by an "overhead starter," but the FAC does not allege that those issues stem from a design, manufacturing, or failure to warn defect. Ultimately, more facts are needed to properly state this claim.

Sustain with leave to amend.

IV. Economic Loss Rule

The economic loss rule bars "a plaintiff's tort recovery of economic damages unless such damages are accompanied by some form of physical harm (i.e. personal injury or property damage.)" (*North American Chemical Co. v. Superior Court* (1997) 59 Cal.App.4th 764, 777.) Under the economic loss rule, "where a purchaser's expectations in a sale are frustrated because the product he bought is not working properly, his remedy is said to be in contract alone, for he has suffered only economic losses. (*Robinson Helicopter Co., Inc. v. Dana Corp.* (2004) 34 Cal.4th 979, 988.) Quite simply, the economic loss rule prevents the law of contract and the law of tort from dissolving one into the other. (*Food Safety Net Services v. Eco Safe Systems USA, Inc.* (2012) 209 Cal.App.4th 1118, 1130, citing *Robinson Helicopter, supra*, 34 Cal.4th at p. 988.) "[E]conomic loss consists of damages for inadequate value, costs of repair and replacement of the defective product or consequent loss of profits—without any claim of personal injury or damages to other property." (*Food Safety Net Services v. Eco Safe*

Systems USA, Inc., supra, 209 Cal.App.4th at 1130, fn. 4, citing *Robinson Helicopter, supra*, 34 Cal.4th at p. 988.)

Defendant is correct that the FAC only alleges damage to the car itself. The FAC alleges: "Plaintiff suffered property and financial damages as [a] result of the vehicle fire, including total loss of the vehicle, towing and storage fees, loss of transportation, and related economic hardship. No personal injuries occurred." (§16.) Plaintiff only alleges economic damages. For this reason, the demurrer is sustained with leave to amend.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2504096	AMERICAN UNITED FEDERAL CREDIT UNION VS HERNANDEZ	MOTION FOR ORDER TO SEAL DOCUMENT(S)

Tentative Ruling: Grant. No opposition.